

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #06	CCRB Case #: 201703800	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/08/2017 5:03 PM	Location of Incident: In front of 645 10th Avenue	18 Mo. SOL 11/8/2018	Precinct: 18		
Date/Time CV Reported Mon, 05/08/2017 9:17 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/12/2017 12:02 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Shreeganes Meade	00867	949315	MTN PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Michael Gallagher	06555	961155	MTN PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Shreeganes Meade	Discourtesy: Police Officer Shreeganes Meade spoke discourteously to § 87(2)(b)			A . Unsubstantiated	

Case Summary

On May 8, 2017, § 87(2)(b) filed this complaint with IAB via telephone generating log § 87(2)(b). This case was received at the CCRB on May 12, 2017.

On May 8, 2017, at approximately 5:03 P.M., § 87(2)(b) § 87(2)(b) was pulling a cart of boxes in the street against traffic along 10th Avenue when he encountered a police vehicle in the vicinity of 10th Avenue and West 46th Street in Manhattan. After § 87(2)(b) walked past the vehicle, PO Shreeganes Meade of the 18th Precinct (Midtown North) followed him and yelled a variation of, “You don’t hear me fucking talking to you,” “Do you hear me fucking talking to you,” and/or, “Fucking stop” (**Allegation A**). Upon stopping § 87(2)(b) PO Meade issued him a § 87(2)(b) [BR 11].

There is video footage for this incident obtained surveillance cameras at VillageCare at 46 and Ten, located at 510 West 46th Street in Manhattan [BRs 07 and 08]. However, the footage does not capture the allegation that PO Meade spoke discourteously to § 87(2)(b). § 87(2)(b) stated that he also began filming after giving PO Meade his identification. § 87(2)(b) attempted to forward this footage to the CCRB but it could not be accessed. § 87(2)(g)



201703800_20170608_1008_DM.mp4

Mediation, Civil and Criminal Histories

- On May 18, 2017, § 87(2)(b) rejected mediation § 87(2)(b).
- A Notice of Claim request was sent on July 19, 2017, and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint [BR 01].
- PO Meade has been a member of the service for seven years and has 23 prior CCRB allegations against him, none of which have been substantiated. Of the allegations that were investigated, five were for discourteous words; three of these allegations were unsubstantiated and two were closed as complainant uncooperative.

Potential Issues

- § 87(2)(b) was identified as a witness of this incident. § 87(2)(g)

§ 87(2)(g)

- Video footage from this incident suggests that there was a third individual seated in the rear of PO Meade's vehicle [BRs 07 and 08]. Both PO Meade and his partner, PO Michael Gallagher of the 18th Precinct, were shown this footage and were consistent that they did not know who the person was. As per the Tour 3 Roll Call from the 18th Precinct, PO Meade and PO Gallagher were the only officers assigned to Sector I/J and were the only officers noted as assigned to RMP #3170 [BR 09]. There was no Daily Vehicle Assignment Sheet on record, as the vehicles are noted in the Roll Call [BR 10]. Based on the individual's clothing, that PO Gallagher opens the rear door of the patrol car, and that the individual does not take any police action in the incident and instead stays back, it is unclear if the person shown is another officer or a civilian participating in a ride-a-long with PO Meade and PO Gallagher. While it is undisputed that this individual and the additional responding officers were in the vicinity of this incident, according to § 87(2)(b)'s statement, it was not until PO Meade got closer to § 87(2)(b) that he began using profanity. § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A -Discourtesy: Police Officer Shreeganes Meade spoke discourteously to

§ 87(2)(b)

It is undisputed that § 87(2)(b) was pulling his delivery cart against traffic along 10th Avenue in Manhattan as PO Meade pulled up in a marked RMP, that § 87(2)(b) walked past the driver's side of PO Meade's vehicle with his cart, that PO Meade said something to the effect of, "Really?" as § 87(2)(b) walked by, and that § 87(2)(b) was initially not compliant

with PO Meade's instructions to stop. § 87(2)(g)

§ 87(2)(b) said that once PO Meade's vehicle pulled up, § 87(2)(b) waited 15 seconds to determine what the officers would do [BR 03]. When the officers did not do anything, § 87(2)(b) continued pushing his cart so that he would be out of the way. As § 87(2)(b) walked past PO Meade's driver's window, PO Meade said, "Really?" § 87(2)(b) did not respond and kept walking. PO Meade then exited his vehicle and said, "Hey sir, stop, hello, sir." § 87(2)(b) did not respond to PO Meade because he did not do anything wrong. As PO Meade got closer to § 87(2)(b) he said a variation of, "You don't hear me fucking talking to you," "Do you hear me fucking talking to you," and/or, "Fucking stop." § 87(2)(b) did not make these allegations in his phone statement. In his phone statement, § 87(2)(b) alleged that while asking for his ID, PO Meade said, "I don't fucking care, I need your ID and I want you to stand there. Give me your fucking ID" [BR 02]. § 87(2)(b) did not mention this in his sworn statement.

In his phone statement with the CCRB, § 87(2)(b) said that he exited § 87(2)(b) § 87(2)(b) because of the sirens and flashing lights outside [BR 04]. Officers appeared to be responding to health-related incident. § 87(2)(b) stood approximately 25 to 30 feet from the scene of the emergency and did not overhear anything in particular that was said. However, the officers were only talking amongst themselves and to the EMTs. There was a black man, identified by the investigation as § 87(2)(b) standing on the sidewalk, filming and yelling about police brutality. § 87(2)(b) did not observe any officer interact with § 87(2)(b) and did not hear an officer use the word "fucking" in any context on scene.

PO Meade said that because § 87(2)(b) pushed his cart along the driver's side of his RMP, PO Meade had to wait for § 87(2)(b) to pass his door before he could exit and respond to the emergency [BR 05]. PO Meade believed he said something to the effect of, "Really?" as § 87(2)(b) walked by. § 87(2)(b) did not respond in any way but continued to play music on his cell phone. PO Meade exited his vehicle and saw that § 87(2)(b) was roughly five feet away and growing. PO Meade instructed § 87(2)(b) to stop and said, "Excuse me, sir, stop" at least three times. PO Meade initially issued these commands in a normal voice but then had to yell after § 87(2)(b). PO Meade did not recall if he issued any other commands to § 87(2)(b). When § 87(2)(b) did not stop, PO Meade did a fast walk/slow run and followed § 87(2)(b). PO Meade got in front of § 87(2)(b) told him to stop, and § 87(2)(b) complied. PO Meade did not say, "You don't hear me fucking talking to you," "Do you hear me fucking talking to you," "Fucking stop," and did not use the word "fucking" in any context during this incident. PO Meade did not use any profanity while interacting with § 87(2)(b). § 87(2)(b) was stopped within five seconds.

PO Gallagher said that upon arriving at the location, he began to walk towards the entrance to 645 10th Avenue, which was the location of an EDP job they were responding to [BR 06]. When PO Gallagher turned around, he saw that PO Meade had § 87(2)(b) stopped. PO Gallagher then joined PO Meade and § 87(2)(b) on the sidewalk. PO Gallagher was not with PO Meade for the first 10 to 15 seconds of his interaction with § 87(2)(b). PO Gallagher did not recall how § 87(2)(b) was signaled to stop and did not recall if § 87(2)(b) was compliant with being stopped. PO Gallagher did not recall if PO Meade made any of the statements above and did not recall if PO Meade used the word "fucking" or any other profanity on scene. PO Gallagher was shown surveillance footage from the incident but it did not refresh his recollection of the allegations.

As noted above the additional officers on scene responding to the emergency at 645 10th Avenue, as well as the third individual in PO Meade and PO Gallagher's RMP, were not interviewed as they were not in the proper vicinity to testify to § 87(2)(b)'s allegations.

As discussed, video footage from this incident does not capture the allegation that PO Meade spoke discourteously to § 87(2)(b).

As per PO Meade's memo book, § 87(2)(b) was pushing/pulling a pushcart, obstructing vehicular traffic. § 87(2)(b) initially continued to walk away from police even after orders to stop [BR 12].

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 6

Investigator:	_____	____Hannah Sampson____	_____
	Signature	Print	Date
Squad Leader:	_____	____Jessica Peña____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date